

#	Case Name	Tentative
2	24-01431292 Arroyo vs. Swift Debt Relief, Inc.	1) Motion to Be Relieved as Counsel of Record 2) Motion to Be Relieved as Counsel of Record 3) Motion to Be Relieved as Counsel of Record MOTION NO. 1: The motion of attorney James D. McNairy from Boutin Jones Inc. to be relieved as counsel of record for defendant Jason DeAngelo is GRANTED. Moving attorney has shown compliance with all the requirements of the California Rules of Court, Rule 3.1362. Moving attorney is ORDERED to give notice to client, and file proof of service of the Court's order as entered. Withdrawal will be effective upon filing of proof of service of the order. MOTION NO. 2: The motion of attorney James D. McNairy from Boutin Jones Inc. to be relieved as counsel of record for defendant Marc Photoglou is GRANTED. Moving attorney has shown compliance with all the requirements of the California Rules of Court, Rule 3.1362. Moving attorney is ORDERED to give notice to client, and file proof of service of the Court's order as entered. Withdrawal will be effective upon filing of proof of service of the order. MOTION NO. 3: The motion of attorney James D. McNairy from Boutin Jones Inc. to be relieved as counsel of record for defendant Swift Debt Relief Inc. is GRANTED. Moving attorney has shown compliance with all the requirements of the California Rules of Court, Rule 3.1362. Moving attorney is ORDERED to give notice to client, and file proof of service of the Court's order as entered. Withdrawal will be effective upon filing of proof of service of the order.
3	26-01572306 Calvillo Martinez vs. THE IRVINE COMPANY LLC	Motion to Compel Arbitration Defendant The Irvine Company LLC's Motion to Compel Arbitration is GRANTED. Defendant contends Plaintiffs' claims are subject to arbitration pursuant to an addendum to a lease agreement which contained an arbitration clause.

Service on Plaintiffs

Self-represented parties are to be served by non-electronic methods unless they affirmatively consent to electronic service.

(Cal. Rules of Court, rules 2.251, subd. (c)(3)(B); 2.253, subd. (b)(3).) Defendant's proof of service reflects the motion and reply were served by electronic service. As Plaintiffs do not object to service and served a timely opposition, the Court considers the merits of the motion but reminds counsel of the requirement to serve self-represented parties by non-electronic methods absent affirmative consent to electronic service.

Legal standard

The Federal Arbitration Act (FAA) authorizes enforcement of arbitration causes unless grounds exist in law or equity for the revocation of any contract. (9 U.S.C. § 2.) Similarly, under the California Arbitration Act (CAA), a party to an arbitration may move to compel arbitration if the other contractual party refuses to arbitrate. (Code Civ. Proc., § 1281.2.)

"[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine whether the agreement exists and, if any defense to its enforcement is raised, whether it is enforceable."

(*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413). "[T]he petitioner bears the burden of proving its existence by a preponderance of the evidence" and the party opposing the petition bears the burden of proving by a preponderance of the evidence of any fact necessary to the defense. (*Ibid.*)

Analysis

The subject arbitration agreement

On or about 5/21/25, plaintiff Claudia Vernoica Calvillo Martinez entered into a one-month lease agreement with Defendants for a term of 8/1/25 to 8/31/25, which included an Addendum for Arbitration of Disputes and Class Action Waiver (Agreement). (Tehrani Decl., ¶ 3, Ex. 1.) After this term, the tenancy continued on a month-to-month basis, renewing each month on the same terms and conditions of the Lease, including the Arbitration Addendum. (Tehrani Decl. at ¶¶ 3, 4 Ex. 1.)

Kamal Alexander Benitez and Renata Monteverde are Plaintiff's children and all three are listed as occupants in the Lease. (Tehrani Decl., Ex. 1.)

Section 1 of the Agreement states, in part:

Any dispute, claim or controversy arising out of or relating to this Lease, your tenancy, including but not limited to, the breach, enforcement, interpretation or validity thereof, or the

Premises (including the Common Area & Amenities), and including the determination of the scope or applicability of this provision to arbitrate (“Claim” or “Claims”) shall be determined by binding arbitration in the County in which the subject Premises is located, before one neutral arbitrator. (Tehrani Decl., Ex. 1 at § 1.)

The Agreement further provides:

arbitration shall be the exclusive and binding remedy for any Claims between the Parties (including claims by Resident or Resident’s Related Parties (as defined below) against Landlord and Landlord’s Related Parties (as defined below), and claims by Landlord and Landlord’s Related Parties against Resident or Resident’s related Parties) and shall be used instead of any court action or jury trial, which are hereby expressly waived.

Whether the Federal Arbitration Act (FAA) applies

Defendant contends that while Civil Code section 1953, subdivision (a)(4) provides “[a]ny provision of a lease or rental agreement of a dwelling by which the lessee agrees to modify or waive” “[h]is procedural rights in litigation in any action involving his rights and obligations as a tenant” “shall be void as contrary to public policy,” this statute is preempted by the FAA, which applies to the Agreement.

The party asserting the FAA applies to an arbitration agreement bears the burden of demonstrating FAA coverage. (*Tuufuli v. West Coast Dental Administrative Services, LLC* (2026) 117 Cal.App.5th 1048, 1054 [citation omitted].) Parties may voluntarily agree to have the FAA govern enforcement of an arbitration agreement. (*Ibid.* [citation omitted].)

Defendant contends the Agreement expressly elects to have the FAA govern. Specifically, the Agreement provides, “Except as otherwise provided in this Addendum, and notwithstanding any other choice of law provision, the Federal Arbitration Act, 9 U.S.C. Sections 1-16, including its substantive and procedural provisions, shall govern the interpretation, enforcement, and all proceedings pursuant to or arising out of the Lease and/or this Addendum,” (Tehrani Decl., Ex. 1 at § 1.)

As Plaintiffs do not dispute the application of the FAA, the Court finds the FAA applies to the Agreement.

Whether an agreement to arbitrate exists

When a party petitions the court to compel arbitration, it “must allege the existence of an agreement to arbitrate the controversy (§ 1281.2); facts necessary for a determination of its enforceability are proven by affidavits or declarations.” (*Condee v. Longwood Management Corp.*

(2001) 88 Cal.App.4th 215, 218 [citation omitted].) The relevant provisions of the arbitration agreement must be set forth verbatim in the petition to compel or a copy of the agreement must be attached to the petition and incorporated by reference. (*Ibid.* [citing Cal. Rules of Court, rule 371 [now rule 3.1330].])

“If the moving party meets its initial prima facie burden and the opposing party does not dispute the existence of the arbitration agreement, then nothing more is required for the moving party to meet its burden of persuasion.” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165 [disagreed with by *Ramirez v. Golden Queen Mining Co., LLC* (2024) 102 Cal.App.5th 821, on a different point.])

Defendant attached a copy of the Agreement as Exhibit 1 to the Tehranian Declaration. Plaintiffs do not dispute the existence of the Agreement. Instead, Plaintiffs argue “Defendants have not established that every Plaintiff is legally bound by the Arbitration Addendum, particularly Kamal Alexander Benitez and Renata Monteverde, who never signed the Lease or the Arbitration Addendum.” (Opp. at 4:13-15.)

As set forth above, the Agreement provides it also applies to claims not only by the Resident but the Resident’s Related Parties, which is defined as the “Resident, Resident’s Occupants, Household Members, and any others under Resident’s control.” (Tehranian Decl., Ex. 1 at § 1.) The Agreement provides: “Only Resident and the following people are permitted to live in the Premises: Claudia Calvillo Martinez, Renata Monteverde, Kamal Benitez (the ‘Occupants’).” (Tehranian Decl., Ex. 1 at § 1.) The Agreement also defines Household Members as “Resident, Resident’s Occupants, any individual residing in the Premises.” (Tehranian Decl., Ex. 1 at § 1.) Plaintiffs do not dispute Benitez and Monteverde are Martinez’s children or that they are Occupants and/or Household Members as defined by the Agreement.

Additionally, “[u]nder the third party beneficiary theory, a nonsignatory may be compelled to arbitrate where the nonsignatory is a third party beneficiary of the contract.” (*Philadelphia Indemnity Ins. Co. v. SMG Holdings, Inc.* (2019) 44 Cal.App.5th 834, 841 [citation omitted].) “Whether a nonsignatory is an intended third party beneficiary to the contract is determined from the parties’ intent, as gleaned from the contract as a whole and the circumstances under which it arose.” (*Ibid.* [citation omitted].)

In the same paragraph addressing arbitration of disputes, the Agreement provides, “Resident and Landlord acknowledge and agree that Resident’s Related Parties and Landlord’s Related Parties are third party beneficiaries of the Lease, and that it is equitable to extend the reciprocal benefits and obligations of this agreement to them.” (Tehranian Decl., Ex. 1 at § 1.) As discussed above, Plaintiffs do not dispute Benitez and Monteverde are Resident’s Related Parties, nor do Plaintiffs dispute they are third party beneficiaries under the Agreement.

		The Court finds an agreement to arbitrate exists. <u>Whether the Agreement covers Plaintiffs' claims</u> The Agreement provides it applies to “[a]ny dispute, claim or controversy arising out of or relating to this Lease.” (Tehranian Decl., Ex. 1 at § 1.) The party opposing arbitration “bears the burden to show the arbitration provision cannot be interpreted to cover the claims in the complaint.” (<i>Howard v. Goldbloom</i> (2018) 30 Cal.App.5th 659, 663.) Plaintiffs do not dispute the Agreement covers their claims which relate to alleged habitability issues of the leased property. The Court finds the Agreement covers Plaintiffs' claims. <u>Enforceability of the Agreement</u> Once the court determines whether an agreement exists, it must then determine whether it is enforceable if any defense to its enforcement is raised. (<i>Rosenthal v. Great Western Fin. Securities Corp.</i> (1996) 14 Cal.4th 394, 413.) Plaintiffs have not raised any defenses as to enforceability of the Agreement. Accordingly, the Court GRANTS Defendant The Irvine Company LLC's motion to compel arbitration. This action is stayed pending the outcome of arbitration.
5	23-01365328 <i>Almaraz-Ramirez vs. Walmart Inc.</i>	1) Motion for Protective Order 2) Motion to Compel Deposition (Oral or Written) 3) Motion to Compel Further Responses to Special Interrogatories <u>Motion for Protective Order</u> Defendant Walmart, Inc.'s Motion for Protective Order is GRANTED in part and DENIED in part. Defendant is ORDERED to produce Grisel “Grey” Granados for a remote deposition which shall be limited to 1.5 hours. The deposition shall take place within 60 days of this order. The parties are ORDERED to meet and confer within 10 days of this order to select a date for the deposition. Code of Civil Procedure section 1987.1 provides, in part: “[T]he court, upon motion reasonably made by [a party, witness, consumer, or employee] . . . may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or